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PLAINTIFFS' (4) MOTIONS TO COMPEL RESPONSES TO REQUESTS
FOR ADMISSION AND REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR
MONETARY SANCTIONS

Motions filed on April 27, 2026.

MOVING PARTY: Plaintiffs Matthew Van Dam and David Van Dam

RESPONDING PARTY: Defendants Contemporary Services
Corporation and Los Angeles Philharmonic Association

NOTICE: OK.

RELIEF REQUESTED: Orders compelling Defendants to serve
further responses without objection to Requests for Admission and Requests for
Production of Documents, Set One, and awarding \$2,810.00 in monetary sanctions
on each motion.

RULING: Plaintiffs' Motion to Compel CSC's Further Responses
to Requests for Admission, Set One (Res. ID: 119436528097), is GRANTED. The
remaining motions are DENIED. All requests for monetary sanctions are DENIED.

BACKGROUND

On October 27, 2023, Matthew Van Dam and David Van Dam (collectively, Plaintiffs) filed the Complaint against Contemporary Services Corporation (CSC) and Los Angeles Philharmonic Association (LAPA), asserting causes of action for assault and battery, false imprisonment, and intentional infliction of emotional distress.

On April 27, 2026, Plaintiffs filed a motion concerning CSC's responses to Requests for Admission, Set One, supported by the declaration of Geoffrey Bosmans, a separate statement challenging Requests for Admission Nos. 19 through 22, and exhibits.

On April 27, 2026, Plaintiffs filed a motion concerning LAPA's responses to Requests for Admission, Set One, supported by the declaration of Geoffrey Bosmans, a separate statement challenging Request for Admission No. 5, and exhibits.

On April 27, 2026, Plaintiffs filed a motion concerning CSC's responses to Requests for Production of Documents, Set One, supported by the declaration of Geoffrey Bosmans, a separate statement addressing Requests for Production Nos. 1 through 18, and exhibits.

On April 27, 2026, Plaintiffs filed a motion concerning LAPA's responses to Requests for Production of Documents, Set One, supported by the declaration of Geoffrey Bosmans, a separate statement addressing Requests for Production Nos. 1, 3 through 12, and 15 through 18, and exhibits.

On July 22, 2026, CSC and LAPA filed oppositions and opposing separate statements to each motion. No timely replies were filed.

DISCUSSION

Procedural Issues

Code of Civil Procedure section 2033.280 applies only where the responding party "fails to serve a timely response" to requests for admission. In that circumstance, the responding party waives its objections, and the requesting party may move to have the matters deemed admitted. (Code Civ. Proc., § 2033.280, subds. (a), (b).) Section 2033.290 applies "[o]n receipt of a

response” and authorizes a motion to compel a further response where an answer is evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

Code of Civil Procedure section 2031.300 likewise applies only where a party “fails to serve a timely response” to an inspection demand. In that circumstance, the party waives its objections, and the demanding party may move for an order compelling a response. (Code Civ. Proc., § 2031.300, subds. (a), (b).) Section 2031.310 applies “[o]n receipt of a response” where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) Section 2031.320 applies only where a party, after serving a response, “fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance.” (Code Civ. Proc., § 2031.320, subd. (a).)

Here, Plaintiffs invoke the wrong statutory procedures across all four motions. The RFA motions proceed under section 2033.280 and seek responses without objection, even though they acknowledge that CSC and LAPA served responses on December 3, 2025. Their passing reference to section 2033.290 incorrectly describes that statute as governing interrogatories and a failure to respond. The separate statements, however, challenge identified responses and seek further responses. (CSC RFA Mot. at 1-6; LAPA RFA Mot. at 1-6.)

The RPD motions contain the same defect. They proceed under section 2031.300 and seek responses without objection, although they acknowledge that Defendants served responses on March 2 and March 10, 2026. Although captioned as motions to compel “compliance,” the papers do not invoke section 2031.320 or identify a failure to produce documents in accordance with a statement of compliance. Instead, they argue that the failure to provide promised supplemental responses resulted in waiver, which does not establish relief under either section 2031.300 or section 2031.320. (CSC RPD Mot. at 1-6; LAPA RPD Mot. at 1-6.)

Plaintiffs have not established that Defendants’ initial responses were untimely. Plaintiffs acknowledge that Defendants received extensions before serving the RFA responses on December 3, 2025, and the RPD responses on March 2 and March 10, 2026, but do not identify the extended deadlines or show that the responses were served after those deadlines. The

failure to provide later supplemental responses does not result in waiver under sections 2033.280 or 2031.300.

Because the separate statements identify the particular responses being challenged and Defendants addressed those disputes on the merits, the Court construes the RFA motions under section 2033.290 and the RPD motions under section 2031.310 as motions to compel further.

Motion to Compel CSC's Further Responses to Requests
for Admission Nos. 19 Through 22

A party may request an admission concerning a fact, an opinion relating to fact, or an application of law to fact. (Code Civ. Proc., § 2033.010.) Each answer must be as complete and straightforward as the information reasonably available permits. (Code Civ. Proc., § 2033.220, subd. (a).) If only part of a request is objectionable, the remainder must be answered, and each objection must clearly state its specific ground. (Code Civ. Proc., § 2033.230, subds. (a), (b).) The Court may compel a further response where an answer is evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).) The responding party bears the burden of justifying its objections. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

Requests Nos. 19 and 20 ask whether the CSC personnel who restrained Matthew Van Dam and David Van Dam, respectively, were acting within the course and scope of their employment with CSC. Requests Nos. 21 and 22 ask whether those personnel were acting within the course and scope of an agency relationship with Hollywood Bowl. (Ex. B at 5.) CSC served materially identical objection-only responses to all four requests and advances the same arguments in opposition. (Ex. C at 16-18; CSC Opp. Sep. Stmt. at 4-20.)

An ambiguity objection is proper only where the request is so ambiguous that the responding party cannot in good faith frame an intelligent reply. A response is required where the nature of the information sought is apparent. (*Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 428-430; *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) Here, each request identifies the personnel by their affiliation with CSC, the alleged restraint of a named Plaintiff, and the employment or agency relationship to be admitted or denied. CSC's earlier responses also identify Plaintiffs' October 7, 2023 removal and restraint by CSC personnel. (Ex. C at 5-7.) The omission of

individual names or repetition of the incident date does not prevent a substantive response. Nor do the terms “personnel,” “restrained,” “course and scope of employment,” or “agency” render the requests unintelligible. The vagueness, ambiguity, and indeterminate-time-and-scope objections are **OVERRULED**.

CSC does not explain how the requests are overbroad. Its undue burden and harassment objections are unsupported by evidence showing the amount of work required to answer or that the burden would be incommensurate with the result sought. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549-550; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417-418.) Lack of foundation or an assumed factual premise does not justify an objection-only response. (*West Pico*, *supra*, 56 Cal.2d at p. 421.) If CSC disputes that its personnel restrained either Plaintiff, it may deny or qualify the request. If it cannot admit or deny after reasonable inquiry, it must state that the information known or readily obtainable remains insufficient. (Code Civ. Proc., § 2033.220, subd. (c); *Cembrook*, *supra*, 56 Cal.2d at pp. 429-430; *Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 529-530.) The overbreadth, burden, harassment, foundation, and speculation objections are **OVERRULED**.

The attorney-client and work-product objections are **OVERRULED**. CSC expressly asserted those protections as required by section 2033.230, subdivision (b), but it has not established that they apply to the information sought. The attorney-client privilege protects confidential communications, not the underlying facts. (*Aerojet-General Corp. v. Transport Indemnity Insurance Co.* (1993) 18 Cal.App.4th 996, 1004.) Work-product protection requires a preliminary or foundational showing that answering would reveal counsel's tactics, impressions, or evaluation of the case or permit opposing counsel to take undue advantage of counsel's efforts. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 502; *Curtis v. Superior Court* (2021) 62 Cal.App.5th 453, 470-472.) These requests seek CSC's admission or denial concerning the employment or agency status of the personnel involved. CSC's assertion that counsel might be consulted in formulating the responses does not establish that the responses themselves would disclose privileged communications or protected work product.

The premature expert-discovery objection is **OVERRULED**. A party may not avoid responding merely because a request may call for expert opinion. Because requests for admission are not limited to matters within the

responding party's personal knowledge, the party must make a reasonable investigation before answering. (*Bloxham v. Saldinger* (2014) 228 Cal.App.4th 729, 751-752; *Grace*, supra, 240 Cal.App.4th at p. 530.) The requests seek CSC's position concerning the employment and agency relationships at issue, not disclosure of an expert's identity, report, communications, or opinions. CSC's assertion that expert input may bear on its responses does not justify withholding substantive answers.

The legal-conclusion objection is **OVERRULED**. Section 2033.010 expressly permits requests concerning an application of law to fact. This includes whether a third person was an "authorized agent" or acted within the "course and scope of employment." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1300.) Requests Nos. 19 through 22 ask CSC to apply those standards to the CSC personnel who allegedly restrained each Plaintiff and to the employment and agency relationships at issue. *Morrow v. Los Angeles Unified School District* (2007) 149 Cal.App.4th 1424 is inapplicable here.

CSC's objection under section 2033.060, subdivision (d), is **OVERRULED**. That subdivision prohibits unauthorized prefaces and instructions, while subdivision (e) contemplates specially defined terms. In any event, Requests Nos. 19 through 22 are full and understandable without reference to the definitions. Each request independently identifies the personnel, conduct, Plaintiff, and employment or agency relationship at issue.

CSC also incorporated its Preliminary Statement and General Objections into each response but does not identify any additional objection or explain how it applies to these requests. CSC therefore has not met its burden of justifying those incorporated objections. The incorporated objections are **OVERRULED**.

The motion is **GRANTED** as to Requests for Admission Nos. 19 through 22. CSC shall serve verified further responses complying with section 2033.220.

Motion to Compel LAPA's Further Responses: Request for Admission No. 5

Each request for admission must be separately set forth and full and complete in itself. (Code Civ. Proc., § 2033.060, subds. (c), (d).) If

only part of a request is objectionable, the remainder must be answered. (Code Civ. Proc., § 2033.230, subd. (a).)

Here, Request for Admission No. 5 asks LAPA to admit that it hired or contracted CSC to provide “those security services.” (Ex. B at 3.) The phrase “those security services” has no antecedent within Request No. 5 and requires reference to Request No. 4, which identifies private security services at the Hollywood Bowl for the October 7, 2023 concert. (Ibid.) Request No. 5 therefore is not full and complete in itself as required by section 2033.060, subdivision (d). LAPA expressly asserted that objection in its response. (Ex. C at 7.)

Because “those security services” identifies the subject of the requested admission, there is no separable, non-objectionable remainder to answer under section 2033.230, subdivision (a).

LAPA’s objection under section 2033.060, subdivision (d), is
SUSTAINED.

The motion is DENIED as to Request for Admission No. 5. The remaining objections are not reached.

Motions to Compel Further Responses to Requests for Production of Documents

Unlike a motion to compel further responses to requests for admission, a motion to compel further responses to requests for production must be supported by specific facts showing good cause for the discovery sought. (Code Civ. Proc., § 2031.310, subd. (b)(1).) A party may move for further responses where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (Id., subd. (a).)

To establish good cause, the moving party must identify a disputed fact of consequence in the action and explain how the discovery sought will tend to prove or disprove that fact or lead to other evidence that will do so. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, overruled on another ground in Williams v. Superior Court (2017) 3 Cal.5th 531, 557, fn. 8.) This burden is not onerous and may be satisfied by a fact-specific showing of relevance. (TBG Ins. Services Corp.

v. Superior Court (2002) 96 Cal.App.4th 443, 448.) Once the moving party demonstrates good cause for the discovery, the burden is on the responding party to justify any objection or failure to fully respond to the inspection demand. (Coy v Superior Court (1962) 58 Cal.2d 210, 220.)

Here, although the burden is low, Plaintiffs have not made the required fact-specific showing of good cause. Each memorandum identifies Plaintiffs' claims and states generally that the requested responses are "essential" to evaluating Defendants' allegations and defenses and preparing for trial. The memoranda, separate statements, and declarations do not identify a particular disputed fact or explain how any category of requested documents would tend to prove or disprove that fact. The separate statements principally identify documents or information that were not produced and explain why Plaintiffs believe the responses or productions are incomplete. The motions otherwise proceed under section 2031.300 and argue that Defendants failed to provide promised supplemental responses and thereby waived their objections. (CSC RPD Mot. at 3-6; LAPA RPD Mot. at 3-6.)

Even assuming Plaintiffs have satisfied the minimal good-cause requirement, they have not established a basis for compelling further responses under section 2031.310, subdivision (a).

As to CSC Requests Nos. 1, 2, 4, 7 through 12, 17, and 18, CSC stated that, following a diligent search and reasonable inquiry, it possessed no responsive or no nonprivileged responsive documents. Where documents were withheld, CSC identified them in a privilege log. As to Requests Nos. 3, 5, 6, and 13 through 15, CSC identified the documents produced or to be produced. Plaintiffs principally contend that additional documents should exist because of CSC's reporting policies or because the documents produced do not identify the particular persons or contain the information Plaintiffs expected. CSC responds that it has identified all responsive documents within its possession, custody, or control and that no additional responsive documents exist. (CSC Opp. Sep. Stmt. at 2-45, 49-54.) Plaintiffs' belief that additional or more informative documents should exist does not establish that CSC's substantive responses are incomplete or evasive.

CSC's response to Request No. 16 does not warrant a different result. That request broadly seeks personnel files, training records, and disciplinary records of any CSC personnel involved in the incident. CSC

objected based on overbreadth, confidentiality, and privacy, stated that it could not comply, described the training provided to its employees, and maintained that it had identified all responsive documents. (CSC Opp. Sep. Stmt. at 45-48.)

LAPA's responses present the same issue. As to Requests Nos. 4, 6 through 9, and 11, LAPA stated that, following a diligent search and reasonable inquiry, it possessed no responsive or no nonprivileged responsive documents. As to Requests Nos. 1, 3, 5, 10, 12, and 15 through 17, LAPA identified documents produced, previously produced, or to be produced. Plaintiffs again argue principally that additional documents should exist or that the identified documents do not fully provide the information sought. LAPA maintains that it has identified all responsive documents within its possession, custody, or control. (LAPA Opp. Sep. Stmt. at 2-40.) When a party objects but also provides complete substantive responses, nothing remains to address on a motion to compel. (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 269.)

Plaintiffs' challenge to the privilege logs does not warrant a further response. The logs identify the date, document type, author, and privilege or protection asserted. The Court finds the information presented sufficient.

To the extent Plaintiffs contend that Defendants failed to produce documents expressly identified in statements of compliance, that issue was not presented under section 2031.320. To the extent Plaintiffs believe other, more specifically identifiable records exist, that belief does not establish that the present responses are incomplete or evasive. Plaintiffs may pursue appropriately tailored follow-up discovery directed to any particular documents or custodians identified through subsequent discovery.

Accordingly, both motions to compel further responses to Requests for Production of Documents are DENIED. No relief is ordered as to LAPA Requests Nos. 2, 13, and 14 because Plaintiffs did not address those requests in their separate statement.

Sanctions

The Court shall impose a monetary sanction against a party,

person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds substantial justification or other circumstances making sanctions unjust. (Code Civ. Proc., §§ 2033.290, subd. (d), 2031.310, subd. (h).)

Here, Plaintiffs request \$2,810 in connection with each motion. Plaintiffs proceeded principally under the no-response statutes even though Defendants had served substantive responses. Plaintiffs prevailed only on the motion concerning CSC's requests for admission, and CSC raised a reasonable dispute concerning the form and scope of those requests. Plaintiffs did not prevail on the LAPA request-for-admission motion or either production-demand motion.

The Court finds substantial justification and that an award would be unjust. All requests for monetary sanctions are DENIED.

CONCLUSION

Plaintiffs' Motion to Compel CSC's Further Responses to Requests for Admission, Set One (Res. ID: 119436528097), is GRANTED. CSC shall serve verified further responses to Requests for Admission Nos. 19 through 22 within 30 days.

Plaintiffs' Motion to Compel LAPA's Further Response to Request for Admission No. 5, Set One (Res. ID: 700759251963), is DENIED.

Plaintiffs' Motion to Compel CSC's Further Responses to Requests for Production of Documents, Set One (Res. ID: 063851897580), is DENIED.

Plaintiffs' Motion to Compel LAPA's Further Responses to Requests for Production of Documents, Set One (Res. ID: 760170050902), is DENIED.

All requests for monetary sanctions are DENIED.